

25STCV28396 25STCV28396

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-27

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Case Number: 25STCV28396 Hearing Date: August 27, 2026 Dept: 512

HEARING DATE: Thurs., August 27, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Diaz

v. Swisher Comm. Inc., et al. COMP.

FILED: 09-29-25

CASE NUMBER: 25STCV28396

NOTICE: OK

PROCEEDINGS: MOTIONS TO COMPEL

FURTHER RESPONSES TO REQUESTS FOR ADMISSION, FORM INTERROGATORIES, SPECIAL
INTERROGATORIES, AND PRODUCTION OF DOCUMENTS

MOVING PARTY: Plaintiff

Margarita Diaz

RESP. PARTY: Defendants

Swisher Comm Inc. and Laureen Swisher

MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION,
INTERROGATORIES, AND PRODUCTION OF DOCUMENTS

(CCP §§ 2030.300, 2031.310, 2033.290)

TENTATIVE RULING:

Plaintiff Margarita Diaz's Motion to

Compel Further Responses to Special Interrogatories (Set One) and Motion to Compel Further Responses to Requests for Production (Set One) are DENIED AS MOOT.

Plaintiff Margarita Diaz's Motion to Compel Further Responses to Special Interrogatories (Set One), Requests for Production (Set One), Requests for Admissions (Set One), and Form Interrogatories (Set One) is GRANTED IN PART and DENIED IN PART. The Motion is GRANTED as to General FROGs Nos. 12.1, 12.2, 12.3, and 15.1 as to Swisher, and General FROGs Nos. 2.3, 2.5, 2.7, 12.1, 12.2, 12.3, and 15.1 as to L. Swisher. The Motion is otherwise DENIED.

Plaintiff Margarita Diaz's Motion to Compel Further Responses to Form Interrogatories (Set One) is DENIED.

All sanctions requests are DENIED.

Plaintiff is ordered to pay \$240.00 in outstanding motion filing fees to the Court.

Moving party is to give notice of ruling.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on May 26 & August 13, 14, 17, 2026 ☒ Late ☐ None

REPLY: Filed
on June 1 & August 20, 2026 ☐
Late ☐ None

ANALYSIS:

I.

Background

On September 29, 2025, Plaintiff Jessica Margarita Diaz ("Plaintiff") filed the instant action against Defendants Swisher Comm Inc. ("Swisher") and Laureen Swisher ("L. Swisher") ("Defendants") and Does 1-10, alleging 15 causes of action arising from Plaintiff's employment at Swisher. (Compl., pp. 1-5.)

On December 1, 2025, Defendants filed an Answer.

On March 20, 2026, Plaintiff filed the instant Motion to Compel Further Responses to Special Interrogatories ("SROGs") (Set One), Requests for Production ("RPDs") (Set One), Requests for Admissions ("RFAs") (Set One), and Form Interrogatories ("FROGs") (Set One) (the "Discovery Motion") and request for sanctions.

On May 6, 2026, Plaintiff filed the instant Motion to Compel Further Responses to FROGs (Set One) (the "FROGs Motion"); Motion to Compel Further Responses to SROGs (the "SROGs Motion"); and Motion to Compel Further Responses to RPDs (the "RPDs Motion"); and request for sanctions accompanying each motion.

On May 26, 2026, Defendants filed an Opposition to the Discovery Motion.

On June 1, 2026, Plaintiff filed a Reply to the Discovery Motion.

On July 14, 2026, the Court called an Informal Discovery Conference ("IDC"). The Court continued and consolidated the hearings on the Discovery Motion, FROGs Motion, SROGs Motion, and RPDs Motion. (7/14/26 Order.)

On August 13, 2026, Defendants filed an Opposition declaration to the RPDs Motion. On August 14, 2026, Defendants filed an Opposition declaration to the FROGs Motion. On August 17, 2026, Defendants filed an Opposition declaration to the SROGs Motion.

On August 20, 2026, Plaintiff filed
Replies to the FROGs, SROGs, and RPDs Motions.

II.
Procedural
Issues

As an initial matter, Plaintiff's
Motions improperly combine eight motions into four. There should be separate
motions for each kind of discovery response requested as to each respective
defendant.

In the future, Plaintiff is ordered to
obtain separate hearing reservations for each substantive motion. Combining multiple
motions manipulates the Court Reservation System and unfairly jumps ahead of
other litigants.

However, the Court will address all eight
motions in the interests of justice and judicial efficiency. That said,
Plaintiff is ordered to pay \$240.00 in outstanding motion filing fees to the
Court.

Further, the Court notes that the
notice of hearing on all the subject Motions incorrectly states the Motions
will be heard at the Chatsworth Courthouse. (Notices of Motion.) However, given
the proper notice given by the Court on 7/14/26 of the proper courthouse for
the instant hearing, the Court finds notice of hearing on all Motions is
satisfactory. (See 7/14/26 Order.)

Finally, the Court finds the 8/17/26 Opposition
declaration is untimely. However, given the timely Reply, the Court exercises
its discretion to address the Opposition declaration on the merits.

III.
Legal
Standard and Discussion

A. SROGs and RPDs

As an initial matter, the Court notes the Discovery Motion, SROGs Motion, and RPDs Motion address Plaintiff's SROGs and RPDs propounded on Defendants. Further, the Court notes that, while titled as motions to compel further responses, the substance of the Discovery Motion as to SROGs and RPDs and the SROGs Motion and RPDs Motion are in substance motions to compel initial responses to SROGs and RPDs.

The parties do not dispute that Defendants provided responses to the SROGs and RPDs prior to the instant hearing date. (See Replies, Coughlin Decl.)

Given that responses have been provided prior to the instant hearing date, the Court finds the Discovery Motion as it pertains to SROGs and RPDs and the SROGs Motion and RPDs Motion are MOOT.

B. FROGs

Parties' Arguments

In the Discovery Motion, Plaintiff moves to compel further responses to General FROGs Nos. 2.3, 2.5, 2.7, 12.1, 12.2, 12.3, and 15.1 as to L. Swisher and General FROGs Nos. 12.1, 12.2, 12.3, 15.1, and 17.1 as to Swisher. (Discovery Motion, Sep. Statement, pp. 1-5.)

In the Opposition to the Discovery Motion, Defendants contend: Plaintiff should have filed eight separate Motions; Plaintiff failed to request an IDC; there is no separate statement as to SROGs; Defendants adequately responded to all FROGs and RFAs; Plaintiff's sanctions request is excessive and meritless; and Defendants should be awarded sanctions of \$2,074.26 regarding the Discovery Motion. (Discovery Motion, pp. 1-7.)

In Reply to the Discovery Motion, Plaintiff states the consolidation of all motions was proper but, in any event, Plaintiff filed separate motions regarding the respective types of discovery requests subsequent to the Discovery Motion; the IDC requirement does not bar the Discovery Motion; SROGs responses were never provided and thus no separate statement was needed regarding the SROGs; the FROGs and RFAs responses were inadequate, including the verifications; and Plaintiff's sanctions requests are adequate.

In the FROGs Motion, Plaintiff moves to compel further responses to Employment FROGs as to both Defendants on the grounds Defendants' responses to the FROGs were not verified and contained objections. (FROGs Motion, Sep. Statement, p. 2.) The FROGs Motion then reiterates certain arguments and requests for further responses to the General FROGs raised in the Discovery Motion. (See FROGs Motion, Sep. Statement, pp. 3-4.)

In the Opposition declaration to the FROGs Motion, defense counsel states any delay in the discovery responses was due to defense counsel and Plaintiff's counsel's respective health difficulties. (FROGs Opp. Decl., pp. 2-3.) Further, defense counsel states counsel is confused regarding to which FROGs exactly Plaintiff refers in the FROGs Motion and Discovery Motion. (FROGs Opp. Decl., pp. 3-4.) Regardless, defense counsel states all FROGs responses are appropriate and adequate. (FROGs Opp. Decl., pp. 4-14.)

In the Reply to the FROGs Motion, Plaintiff states Defendants served supplemental responses to the Employment FROGs. (FROGs Reply, pp. 1-2.) Plaintiff reiterates that General FROGs Nos. 2.3, 2.5, 2.7, 12.1, 12.2, 12.3, and 15.1 as to L. Swisher and General FROGs Nos. 12.1, 12.2, 12.3, 15.1, and 17.1 as to Swisher remain deficient. (FROGs Reply, p. 2-4.) Plaintiff states the Opposition and the supplemental Employment FROGs to not render the FROGs Motion moot or warrant denial of the motions. (FROGS Reply, pp. 3-4.)

Initial Matters

As an initial matter, the Court notes the motion consolidation has already been addressed above and an IDC was held prior to the instant hearing.

Employment FROGs

As to the Employment FROGs to Defendants, the Court finds the FROGs Motion was untimely filed and served and was the first time the Employment ROGs were addressed.

However, the Court finds the parties do not dispute that Defendants provided supplemental responses to the

Employment FROGs prior to the instant hearing and that there are no deficiencies with these responses besides certain references to the General FROGs responses, which are also disputed. (See FROGs Reply, p. 3.)

Given that substantially compliant Employment FROGs responses were provided by Defendants prior to the instant hearing, the Court DENIES the FROGs Motion as MOOT as to both Defendants regarding the Employment FROGs.

General FROGs

Turning to the General FROGs, the Court finds the Discovery Motion was timely filed and served regarding the General FROGs as to both Defendants. The Court need not address the FROGs Motion for the General FROGs as it contains identical challenges to the General FROGs as the Discovery Motion and is thus redundant.

General FROGs – Swisher

As to the General FROGs to Swisher, the Court finds the response that “discovery is continuing” for General FROGs 12.1, 12.2, and 12.3 is an inadequate and improper response under the Code of Civil Procedure. (See Discovery Motion, Coughlin Decl., Exhs. E, I.) Indeed, Code of Civil Procedure section 2030.210 requires that a party responding to propounded discovery responds under oath with one of the following responses: “(1) An answer containing the information sought to be discovered. (2) An exercise of the party’s option to produce writings. (3) An objection to the particular interrogatory.” (Code Civ. Proc., § 2030.210, subds. (a).) Swisher’s response fails to include any of these three response options. As such, an order compelling a further response as to General FROGs Nos. 12.1, 12.2, and 12.3 are warranted.

Next, the Court finds Swisher’s response to FROG No. 15.1 is inadequate and improper under the Code of Civil Procedure. General FROG No. 15.1 asks Swisher to identify each denial or defense in Swisher’s Answer and to provide the basis, contact information, and documents that support those denials and/or defenses. (See Discovery Motion, Coughlin Decl., Exhs. E, I.) Swisher’s response included an objection on various grounds to the General FROG as well as a statement that investigation and discovery is ongoing and not completed in this action. (See Discovery Motion, Coughlin Decl., Exhs. E, I.) The Court does not find this General FROG is

violative of the Code of Civil Procedure as Swisher suggests or that the General FROG is objectionable on its face. Further, Swisher fails to support this contention with sufficient legal authority. Moreover, the Court does not find that Swisher's response regarding the details of ongoing discovery and investigation is an adequate response to the General FROG. Indeed, the Court's record shows Defendants' Answer includes a general denial and 18 affirmative defenses, which could be included in the response to the General FROG. (See Answer.) As such, an order compelling a further response as to General FROG No. 15.1 is warranted.

Finally, the Court finds that Swisher's responses to General FROG No. 17.1 are adequate. General FROG No. 17.1 requests Swisher provide information as to each RFA that is not an unqualified admission. (See Discovery Motion, Coughlin Decl., Exhs. E, I.) The Court finds the information provided is clear and appears pertinent. (See Discovery Motion, Coughlin Decl., Exhs. E, I.) Thus, the Court does not find an order is warranted compelling a further response to General FROG No. 17.1.

General FROGs – L. Swisher

As to the General FROGs to L. Swisher, the Court finds the objections to General FROGs Nos. 2.3, 2.5, and 2.7 are inadequate and meritless. These General FROGs request basic identification information for L. Swisher, such as L. Swisher's driver's license information; current and present residences; and past and present schools or other academic or vocational schools attended. (See Discovery Motion, Coughlin Decl., Exhs. F, J.) The Court does not find L. Swisher's objections on privacy and relevancy to be well-founded given the instant action is an employment dispute, and L. Swisher's identification information is relevant to the action. For example, L. Swisher's identification information could be relevant to employment records, wage issues, and other employment documents. (See Compl.) To the extent defense counsel states in the Opposition that defense counsel is concerned for L. Swisher's safety and thus responses to General FROGs Nos. 2.3, 2.5, and 2.7 are not warranted (see Opp.), the Court finds there has been no protective order filed in this matter, no protective order or discovery agreement referenced by either party, or any other protective measure brought to the Court's attention that would support L. Swisher's objections. As such, an order compelling a further response as to General FROGs Nos. 2.3, 2.5, and 2.7 are warranted.

Next, the Court finds the response

that “discovery is continuing” for General FROGs 12.1, 12.2, and 12.3 is an inadequate and improper response under the Code of Civil Procedure. (See Discovery Motion, Coughlin Decl., Exhs. F, J.) Indeed, Code of Civil Procedure section 2030.210 requires that a party responding to propounded discovery responds under oath with one of the following responses: “(1) An answer containing the information sought to be discovered. (2) An exercise of the party’s option to produce writings. (3) An objection to the particular interrogatory.” (Code Civ. Proc., § 2030.210, subds. (a).) L. Swisher’s response fails to include any of these three response options. As such, an order compelling a further response as to General FROGs Nos. 12.1, 12.2, and 12.3 are warranted.

Finally, the Court finds L. Swisher’s response to FROG No. 15.1 is inadequate and improper under the Code of Civil Procedure. General FROG No. 15.1 asks L. Swisher to identify each denial or defense in L. Swisher’s Answer and to provide the basis, contact information, and documents that support those denials and/or defenses. (See Discovery Motion, Coughlin Decl., Exhs. F, J.) L. Swisher’s response included an objection on various grounds to the General FROG as well as a statement that investigation and discovery is ongoing and not completed in this action. (See Discovery Motion, Coughlin Decl., Exhs. F, J.) The Court does not find this General FROG is violative of the Code of Civil Procedure as L. Swisher suggests or that the General FROG is objectionable on its face. Further, L. Swisher fails to support this contention with sufficient legal authority. Moreover, the Court does not find that L. Swisher’s response regarding the details of ongoing discovery and investigation is an adequate response to the General FROG. Indeed, the Court’s record shows Defendants’ Answer includes a general denial and 18 affirmative defenses, which could be included in the response to the General FROG. (See Answer.) As such, an order compelling a further response as to General FROG No. 15.1 is warranted.

In sum, the FROGs Motion is DENIED.

The Discovery Motion is GRANTED as to General FROGs Nos. 12.1, 12.2, 12.3, and 15.1 as to Swisher, and General FROGs Nos. 2.3, 2.5, 2.7, 12.1, 12.2, 12.3, and 15.1 as to L. Swisher.

C. RFAs

In the Discovery Motion, Plaintiff moves to compel further responses to RFA Nos. 3-14, 16, 18, and 20-21 as to L.

Swisher and RFA Nos. 8-13 and 15-16 as to Swisher. (Discovery Motion, Sep. Statement, pp. 6-8.) Plaintiff also challenges the "Preliminary Statement" included with the RFAs as Plaintiff asserts the Preliminary Statement nullifies or contradicts the verification of the RFAs.

In Opposition, Defendants contend Plaintiff should have filed eight separate Motions; Plaintiff failed to request an IDC; there is no separate statement as to SROGs; Defendants adequately responded to all FROGs and RFAs; Plaintiff's sanctions request is excessive and meritless; and Defendants should be awarded sanctions of \$2,074.26 regarding the Discovery Motion. (Discovery Motion, pp. 1-7.)

In Reply, Plaintiff states the consolidation of all motions was proper but, in any event, Plaintiff filed separate motions regarding the respective types of discovery requests subsequent to the Discovery Motion; the IDC requirement does not bar the Discovery Motion; SROGs responses were never provided and thus no separate statement was needed regarding the SROGs; the FROGs and RFAs responses were inadequate, including the verifications; and Plaintiff's sanctions requests are adequate.

Here, the Court finds the RFA Preliminary Statement in the responses does not contradict the verifications of the RFAs. As such, the Court does not find an order regarding the Preliminary Statement is necessary at this time.

As an initial matter, the Court notes the motion consolidation has already been addressed above and an IDC was held prior to the instant hearing.

As to the specifically challenged RFAs, the Court first notes that the Separate Statement regarding these requests and responses is confusing and hard to navigate. The Court admonishes Plaintiff that a Separate Statement is supposed to be a clear and helpful tool to assist the Court in navigating the discovery requests and responses at issue.

Upon review of the Separate Statement, Discovery Motion, and supporting declaration, the Court finds Swisher's responses to the RFAs appropriately state either Admit or Deny and are verified. (See Code Civ. Proc., §§ 2033.210,

2033.220; Discovery Motion, Coughlin Decl., Exh. K.)

The Court also finds that L. Swisher's responses to the RFAs appropriately state either Admit or Deny and are verified as well. (See Code Civ. Proc., §§ 2033.210, 2033.220; Discovery Motion, Coughlin Decl., Exh. L.) To the extent RFA Nos. 14 and 16 contain a sentence of elaboration on the response provided, the Court does not find the elaborations negate or confuse the substantive answer provided for these RFAs. (See Discovery Motion, Coughlin Decl., Exh. L.)

As such, the Court DENIES the Discovery Motion as to the RFAs.

D. Sanctions

Plaintiff's Discovery Motion, SROGs Motion, FROGs Motion, and RPDs Motion either contained procedural defects or were unsuccessful.

Defendants provided either responses and/or supplemental responses prior to the instant hearing, but Defendants delayed in providing a majority of the responses/supplemental responses, and Defendants' FROGs responses were deficient.

Given these circumstances and the shortcomings of both parties regarding all subject Motions, the Court does not find sanctions are warranted at this time for any motion and as to any party.

Thus, all sanctions requests by both parties are DENIED.

IV.

Conclusion & Order

For the foregoing reasons, Plaintiff Margarita Diaz's Motion to Compel Further Responses to Special Interrogatories (Set One) and Motion to Compel Further Responses to Requests for Production (Set One) are DENIED AS MOOT.

Plaintiff Margarita Diaz's Motion to Compel Further Responses to Special Interrogatories (Set One), Requests for Production (Set One), Requests for Admissions (Set One), and Form Interrogatories (Set One) is GRANTED IN PART and DENIED IN PART. The Motion is GRANTED as to General FROGs Nos. 12.1, 12.2, 12.3, and 15.1 as to Swisher, and General FROGs Nos. 2.3, 2.5, 2.7, 12.1, 12.2, 12.3, and 15.1 as to L. Swisher. The Motion is otherwise DENIED.

Plaintiff Margarita Diaz's Motion to Compel Further Responses to Form Interrogatories (Set One) is DENIED.

All sanctions requests are DENIED.

Plaintiff is ordered to pay \$240.00 in outstanding motion filing fees to the Court.

Moving party is to give notice of ruling.